Broker Independent Contractor & Commission Agreement

BROKER AGREEMENT · COMMISSION STRUCTURE · CONFIDENTIALITY & NON-COMPETE

Effective Date	
Broker Full Legal Name	
Florida License No.	

This Broker Independent Contractor and Commission Agreement (the **"Agreement"**) is entered into as of the Effective Date between **365 Yachts Inc.** (the **"Company"**), a Florida licensed yacht brokerage represented by Shelly Melcher, Licensed Employing Broker, and the individual named above (the **"Broker"**), together the **"Parties."** One signature on the final page executes every Part of this Agreement.

Part 1 — Broker Agreement

1.1 Engagement and Independent Contractor Status

The Company engages Broker as an independent contractor, not an employee. Broker is responsible for Broker's own income and self-employment taxes, licensing and bond fees, insurance, and business expenses unless otherwise agreed in writing. Broker will receive an IRS Form 1099 for commissions paid and must provide a completed Form W-9 before any payment is issued. Nothing in this Agreement creates an employment relationship, partnership, or joint venture.

1.2 Licensing and Compliance

Broker shall hold and maintain, at Broker's expense, an active Florida yacht salesperson or broker license and all required bonds, with that license associated with the Company through the Department of Business and Professional Regulation. Broker shall conduct all brokerage activity under the Company's license and supervision and in compliance with Chapter 326, Florida Statutes, and all applicable federal, state, and international law. Broker shall notify the Company immediately of any lapse, complaint, investigation, or disciplinary action affecting Broker's license.

1.3 Standards of Conduct

Broker agrees to uphold International Yacht Brokers Association (IYBA) standards and ethics, represent the 365 Yachts brand professionally in every client interaction, and contribute to team growth and collaboration. Broker shall conduct all Company business through Company-issued email and platforms and shall follow Company brand standards and policies as updated from time to time.

1.4 Client Funds

Broker shall **never** receive, hold, or direct client deposits or purchase funds personally. All deposits and purchase funds move only through the Company's designated licensed escrow account or an approved closing agent. Broker shall verify every wire instruction by telephone to a known number before any funds are sent and shall report any suspicious or changed wiring instructions to the Company immediately.

1.5 Authority

Shelly Melcher, as Licensed Employing Broker and Authorized Signer, is the sole authority for sales terms, listing and purchase agreements executed on the Company's behalf, commission approvals, performance evaluations, and operational decisions. No broker or affiliate may represent, alter, or commit to Company terms without her written confirmation.

1.6 Term and Termination

This Agreement begins on the Effective Date and continues until terminated. Either Party may terminate this Agreement at any time, with or without cause, by written notice to the other. The Company may terminate immediately for any breach of Part 3, any loss or suspension of Broker's license, or conduct that exposes the Company or its clients to legal, financial, or reputational harm. On termination, Broker's license association and system access end and Broker shall comply with Part 3.

1.7 Modification

This Agreement may be amended only by a written Addendum signed by both Parties. Any change to commission splits, bonuses, or incentives requires a signed Addendum.

Part 2 — Commission Agreement Structure

2.1 How Commissions Are Earned

All commissions and brokerage fees on any transaction Broker handles are earned by and payable to the Company. Broker shall not accept any commission, fee, referral payment, or other compensation directly from a client, co-broker, or third party. Broker's share is paid by the Company from brokerage fees actually received, as set out below.

2.2 Definitions

(a) Gross Commission. The total brokerage commission paid on a transaction, which is customarily ten percent (10%) of the sale price unless otherwise agreed in the listing or purchase documents.

(b) Company Side. The portion of the Gross Commission received by the Company. On a co-brokered transaction, the Gross Commission is customarily split 50/50 between the listing and selling brokerages, and the Company Side is the Company's half.

(c) Net Brokerage Fee. The Company Side actually received in cleared funds, less any third-party referral fees or approved transaction costs disclosed to Broker in advance.

(d) Company-Generated Lead. A buyer, seller, or listing lead originated or delivered by the Company, including through its marketing, digital outreach, website, 365YachtMatch.com, or assignment by the Sales Executive.

(e) Broker-Generated Lead. A buyer, seller, or listing lead originated by Broker's own contacts and efforts and recorded in the Company CRM before first substantive contact.

2.3 Commission Splits

Broker's share of the Net Brokerage Fee is set individually based on experience and performance and is recorded here:

Lead Source	Broker Split	365 Yachts House
Company-Generated Lead (In-House)	_____ %	_____ %
Broker-Generated Lead (Personal)	_____ %	_____ %

2.4 Co-Brokered Transactions

On a co-brokered transaction, Broker's split under Section 2.3 applies to the Company Side only. On a transaction where the Company represents both the seller and the buyer, Broker's split applies to the full Net Brokerage Fee retained by the Company.

2.5 Worked Examples

For illustration only, assuming a ten percent (10%) Gross Commission and a sixty percent (60%) Broker split:

Transaction	Sale Price	Gross Commission	Company Side	Broker at 60%
Co-brokered (50/50)	$500,000	$50,000	$25,000	$15,000
In-house (listing and buyer)	$500,000	$50,000	$50,000	$30,000

Actual payouts are governed by the splits recorded in Section 2.3 and the Net Brokerage Fee actually received.

2.6 Payment

The Company pays Broker's share by same-day wire transfer once the Company has received cleared funds and all closing documents are complete. No commission is earned or payable on a transaction that does not close or for which the Company does not receive payment.

2.7 Review and Growth

Commission splits are reviewed after Broker's first successful sales, with eligibility for increased payout based on performance. Higher In-House splits may be offered to monthly top performers or awarded to winners of sales campaigns announced by the Sales Executive. Any increase takes effect only by signed Addendum.

2.8 Bonuses and Incentives

Bonuses, referral rewards, and performance incentives become available ninety (90) days after execution of this Agreement, provided Broker has closed a minimum of two (2) transactions. Specific bonus terms are set by signed Addendum.

2.9 Partnerships and Custom Opportunities

Custom payouts for partnership, co-brokerage, referral, or strategic opportunities are agreed case by case in a written Addendum signed and authorized by Shelly Melcher. Broker is encouraged to present such opportunities, with full details and contact information, to the Company for review.

2.10 Commissions After Termination

For any transaction under a fully executed purchase agreement on the date this Agreement terminates, the Company will pay Broker's share under this Part 2 when that transaction closes and the Company receives payment, provided Broker is not in breach of this Agreement. No commission is payable on listings, leads, or transactions that go under contract after termination.

Part 3 — Confidentiality and Non-Compete

3.1 Confidential Information

"Confidential Information" means all non-public Company information, including client and deal data (listings, client lists, contacts, financials, pricing, commission structures, and deal terms); proprietary platforms and systems (including 365YachtMatch.com, CRM tools, scripts, and automations); workflows, training materials, playbooks, and sales systems; partnerships, referral programs, vendor agreements, and off-market sources; and internal communications and strategies.

3.2 Broker's Obligations

Broker shall protect Confidential Information with reasonable care; use it solely for legitimate Company business on a need-to-know basis; not copy, replicate, or reverse-engineer Company systems or strategies; return or destroy all Confidential Information upon termination; and immediately report any unauthorized use or breach. Misuse of Confidential Information is grounds for immediate termination.

3.3 Data and Systems Security

Broker shall (a) keep all Company login credentials strictly personal and confidential and never share, lend, or disclose access to any Company platform, including email, YachtCloser, BoatWizard, GoHighLevel CRM, 365YachtMatch.com, or any other Company system; (b) conduct all Company business exclusively through Company-issued email and platforms, never through personal email, messaging, or cloud storage accounts; (c) not download, export, copy, screenshot, photograph, or transmit client lists, lead databases, deal files, or CRM data outside Company systems for any purpose other than an active Company transaction; (d) enable reasonable device security, such as a passcode or lock, on any device used to access Company systems; and (e) immediately notify the Company of any lost or stolen device, suspected account compromise, or unauthorized access. The Company may suspend or revoke system access at any time and may audit account activity to protect client data.

3.4 Ownership of Work Product, Clients, and Accounts

All leads, client relationships, prospect and referral contacts, listings, deal files, marketing materials, content, and any social media or advertising accounts created for or in connection with Company business are and remain the exclusive property of the Company, regardless of who generated or maintained them. Upon termination for any reason, Broker shall immediately return all Company property, surrender access to all accounts, and permanently delete any Company data in Broker's possession, confirming deletion in writing upon request.

3.5 Non-Compete and Non-Solicitation

(a) Duration. Twelve (12) months after this Agreement terminates for any reason.

(b) Scope. The Florida counties in which Broker worked for the Company, and any other regions, domestic or international, in which Broker did business or had client contact on the Company's behalf.

(c) Permitted. Broker may work as a yacht broker elsewhere after leaving, provided Broker does not use Company Confidential Information or relationships.

(d) Restricted. Broker may not use or share Confidential Information; contact or solicit any Company client, prospect, or referral source first met through the Company; or divert any business opportunity discovered while with the Company.

3.6 Consequences of Breach; Remedies and Enforcement

(a) Immediate Termination. Any breach of this Part 3, including misuse of Confidential Information, unauthorized data export, credential sharing, or client solicitation, is grounds for immediate termination and forfeiture of system access.

(b) Injunctive Relief. Broker acknowledges that a breach would cause the Company immediate and irreparable harm for which money damages alone are inadequate. The Company is entitled to seek temporary, preliminary, and permanent injunctive relief, without posting bond, in addition to all other remedies.

(c) Damages and Disgorgement. The Company may recover all actual damages caused by a breach, plus disgorgement of any commissions, fees, or profits Broker earned through misuse of Confidential Information, diverted opportunities, or solicited Company clients. Commissions otherwise payable to Broker that arise from or relate to the breach are forfeited.

(d) Trade Secret Protection. Company client lists, lead databases, and proprietary systems constitute trade secrets. The Company reserves all rights and remedies under the Florida Uniform Trade Secrets Act and the federal Defend Trade Secrets Act, including exemplary damages where available.

(e) Attorney's Fees. If the Company prevails in any action to enforce this Part 3, Broker shall reimburse the Company's reasonable attorney's fees, court costs, and expenses of enforcement.

(f) Survival and Reformation. Confidentiality and trade secret obligations survive termination indefinitely; non-compete and non-solicitation obligations survive for the twelve (12) month period stated above. If any provision is found overbroad, a court may reform it to the maximum enforceable scope rather than void it.

Part 4 — General Provisions

4.1 Governing Law and Venue

This Agreement is governed by the laws of the State of Florida. Exclusive venue for all disputes is Palm Beach County, Florida.

4.2 Entire Agreement

This Agreement, together with any signed Addenda, is the entire agreement between the Parties on its subject matter and supersedes all prior discussions, offers, and onboarding materials. Company training manuals and policies provide guidance only and do not override this Agreement.

4.3 Severability, Waiver, and Counterparts

If any provision is held unenforceable, the remainder stays in full force. A failure to enforce any provision is not a waiver of it. This Agreement may be signed electronically and in counterparts, each of which is an original.

Execution

By signing below, Broker confirms that Broker has read, understood, and agrees to be bound by every Part of this Agreement, including the Broker Agreement, the Commission Agreement Structure, and the Confidentiality and Non-Compete provisions, in full.

365 YACHTS INC.

Signature

_____

Name and Title

Shelly Melcher, Licensed Employing Broker

Date

_____

BROKER

Signature

_____

Printed Name

_____

Date

_____

Broker Phone		**Broker Email**	
Mailing Address			